

The Claremont City Council held a meeting on Wednesday, October 11, 2017, in the Council Chambers of City Hall.

Non-meeting pursuant to RSA 91-A:2I – Collective Bargaining was held at 6:00 p.m.

The meeting was called to order by Mayor Lovett at 6:32 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett said information for some items on the agenda was not received in the packet and asked if the Council wanted to suspend Council Rule 24. Filing with Clerk.

A motion was made by Mr. Pope and seconded by Ms. Kier to suspend Council Rule 24.

Voice vote 9-0.

Mr. McNutt said the Approval of Multi-Year Lease for the Claremont District Court item is being withdrawn.

REPORT OF THE SECRETARY

Mayor Lovett said the minutes of the July 12, 2017, City Council meeting were not complete [public portion of the Non-Public Session was missing], so she said Council could not vote on them.

A motion was made by Mr. Damren and seconded by Mr. Simonds to accept the minutes of the September 13, 2017, City Council meeting.

Mr. Raymond, Ms. Kier, Ms. Towle and Mayor Lovett abstained as they were not at the meeting.

Voice vote: motion carried 5-0 with 4 abstentions: Mr. Raymond, Ms. Kier, Ms. Towle and Mayor Lovett.

A motion was made by Ms. Towle and seconded by Mr. Simonds to accept the minutes of the September 21, 2017, City Council meeting.

Voice vote: motion carried 9-0.

A motion was made by Mr. Damren and seconded by Ms. Kier to accept the minutes of the September 27, 2017, City Council meeting.

Mr. Simonds abstained as he was absent from that meeting.

Mayor Lovett said on page 8 to include that the items not discussed that night was due to the late hour.

Voice vote: motion carried 8-0 with 1 abstain: Mr. Simonds.

A motion was made by Mr. Koloski and seconded by Ms. Towle to accept the minutes of the September 28, 2017, City Council meeting.

Mr. Raymond abstained as he was absent from that meeting.

Voice vote: motion carried 8-0 with 1 abstain: Mr. Raymond.

MAYOR'S NOTES

From Mayor Lovett:

- Thank you to everyone involved in the Farmers Market. Last Thursday was the last market for the season.
- Thank you to everyone who participated in the Chili Cook-Off. Good event.
- Thank you to County Commissioners, County Administrators and everyone who walked the Unity Mountain Trail.
- November 15 and 16 is the NHMA Annual Conference. The expense for Councilors to attend will be reimbursed, but overnight stays will not. She encouraged the Council winners of the November election to attend.

CITY MANAGER'S REPORT

Mr. McNutt read his report.

- Claremont Fire Department, Friday, October 13, 6:30 p.m., 132nd Annual Fire Prevention Parade

- October 14 Fire Department will celebrate 100 year anniversary, open house, 10 a.m. to 2 p.m.
- Metered Street Lights – switching street lights to LED will use 64% less electricity
- Blighted Properties – demolition expected to begin in November
 - o 20 Goulet Avenue
 - o 30 West Pleasant Street
- Sullivan County Economic Development Stakeholder Workshop held October 3rd
- Center for Women & Enterprise Graduation – 5 women graduates
- Parks & Recreation
 - o September 21st hosted first Annual CSBCC Golf Scramble at the Claremont Country Club
 - o Commended staff for all its hard work
- Public Works
 - o Main Street paving began September 28th (state funds)
 - o Washington Street paving (state funds) expected to begin mid-October
 - o Main Street Project (NHDOT) expected to begin construction 2017/18
 - o WWTP Solar Array contract being reviewed
 - o Fall Clean-up October 30 – November 3
 - o Winter Parking Ban November 1, 2017 to April 15, 2018
 - o Claremont Cemetery Fall Maintenance, remove items before November 1
- Economic Development
 - o Claremont Development Authority – September 28 – sign and façade loan program
 - o Ford dealership, Charlestown Road – new business/construction
 - o Hobby Shop on Pleasant Street
 - o North Country Smokehouse, temporary certificate of occupancy issued
 - o Nation Field Representatives, new addition now occupied
 - Renovations to existing portion of the building underway
- Saturday, October 21, 11 a.m. to 1 p.m., Claremont MakerSpace open house

Regarding blighted properties, Ms. Towle asked about the outcome of the fire damaged property at 36 Sugar River Drive. Mr. McNutt said it was discussed with the NICE (Neighborhood Improvement through Code Enforcement) Committee. The property owner sold the property to a contractor and it is believed the contractor left the state. The building was taken down and a pile of debris is left. Staff is working to get that debris removed.

Mr. Koloski reminded everyone about a previous discussion regarding missing long jump pits being an issue with the Parks and Recreation Department being able to host state meets.

Mr. Koloski said last fall a company wanted to purchase leaves from the City. He said he would resend the information to Mr. McNutt.

Mayor Lovett's comments regarding the Department Reports:

- Finance Report has a comment that \$500,000 could be allocated without negatively impacting fund balance. She would like to address that under Future Agenda Items.
- Fire Department Report – some failed hoses need to be replaced
- Library Report – she appreciates the layout of the report
- She heard that people appreciate the paving on Main Street
- Police, Planning, and Parks & Recreation reports were not in the packet

Mayor Lovett said the Opera House will have an open house Friday, 10/13, 5:30 p.m.-8 p.m.; art exhibit 5:30 p.m.-6:30 p.m. and Grand Drape presentation 6:30 p.m.

Mayor Lovett said the Healthy Homes Conference will take place October 24th.

Mr. McNutt said he will send the Planning & Development and the Parks & Recreation reports to the Council.

APPOINTMENT TO BOARDS AND COMMITTEES

Fiske Free Library Board of Trustees

A motion was made by Mr. Damren and seconded by Mr. Raymond to re-appoint Sean Magee to seat 2 of the Fiske Free Library Board of Trustees.

Voice vote: motion carried 9-0.

Frances J. Tolles Home Trustees

A motion was made by Mr. Koloski and seconded by Ms. Towle to appoint Jacquelyn Hall to seat 4 of the Frances J. Tolles Home Trustees.

Voice vote: motion carried 9-0.

A motion was made by Mr. Koloski and seconded by Mr. Simonds to appoint Cecelia Ferland to seat 7 of the Frances J. Tolles Home Trustees.

Voice vote: motion carried 9-0.

CITIZEN'S FORUM

Bernie Folta, Ward 3, praised Mayor Lovett for bringing up Council Rule 24. He complimented the Finance Director; the Donation Report was not in the packet, but it later appeared on the website. He said NHDOT will have a 10-Year Plan meeting on Monday, October 23, 7 p.m. at the CSB Community Center.

Mary Walter, Finance Director, said a flyer with the 10-Year Plan meeting information will run on CCTV (Claremont Community Television).

Jim Feleen, Ward 2, said the initial plan at the track had two long jump runways. He said there is room to put them in, but it will take some money. He talked about the City-owned parcel in the middle of Farmer MacGlaflin's corn field and that he has been farming it for free. He asked if there has been any movement on this. Mayor Lovett said the Council has asked the City Manager to look into it.

Mayor Lovett asked, regarding the track, if the lack of the long jump(s) is the only barrier to having state meets. Mark Brislin, Parks & Recreation Director, said there are other concerns, so he is working with the athletic director at the school to see what it would take to hold a state meet there.

Presentation on USDA Rural Development Program(s)

Seth Leonard, Housing Programs Director, US Department of Agriculture, said they are active in community development. He introduced Cheryl Ducharme, Business and Cooperative Programs Director Rural Development, and Deborah Nanfeldt, Community Programs Director Rural Development. They showed a PowerPoint presentation, USDA Rural Development Community Development Tools.

- Invested \$216 Million in NH Communities
- 40-Plus Programs Helping Rural Vermont and New Hampshire
- Eligibility – entire community is eligible
- Housing programs
 - Guaranteed loans
 - Direct loan
 - Grant
- Single Family Guaranteed Housing
- Single Family Direct Housing
- Housing Programs
 - \$135.2 million in investment
- 504 Home Repair Program
 - To help very low-income rural home owners make health, safety and efficiency repairs to their homes
- Examples of Repair
 - Remove Hazards
 - Increase Accessibility
 - Modernize
- Multi-Family Housing Loans and Rental Assistance
- Community Programs: Essential Facilities
 - Guaranteed Loan
 - Direct Loan
 - Grant
- Supports Essential Community Facilities
- Eligible Applicants

- o Non-Profits
 - o Public Entities
 - o Rural Community with population of 20,000 or less
- Community Facility Grants
- Mascoma Community Health Center
- Community Program: Water and Environmental Programs/Utilities
- Water and Environmental Programs
- Business and Cooperative Programs
- Guaranteed Loans
 - o Business and Industry Loan Guarantee
 - o Rural Energy for America Loan Guarantee
 - Has to be For-Profit
- Direct Loans
 - o Intermediary Relending Program
 - o Rural Micro Entrepreneur Assistance Program
- Grants to Non-profits and Municipalities
 - o Rural Business Development Grants
- Business and Cooperative Programs – Groveton Industrial Park
- Value Added Producer Grants
- Rural Energy for America Program
 - o For-profit or ag producer
- Rural Development in Claremont
 - o 44 homes bought & repaired in Sullivan County in 2017

Nancy Merrill, Planning and Development Director, said the revolving loan funds the CDA (Claremont Development Authority) uses are USDA Rural Development funds.

OLD BUSINESS

Ordinance 556 Open Burning – First Reading

The purpose of this proposed change is to establish procedures and a permitting system to the Claremont City Code regarding outside fires, other than those related to gas or charcoal grills, heating devices or uses related to construction or maintenance activities.

Enactment of this Ordinance will revise Chapter 6, Fire Codes & Enforcement by adding provisions to establish procedures and a permitting system to regulate open burning within the City limits.

Fire Chief Rick Bergeron said that he corrected the table so that Category 1 fires are allowed in MUHD, Municipal/Hospital Dist. Also, he added where to find the Daily Fire Danger rating.

Mr. Koloski read the explanation of proposed action.

A motion was made by Mr. Koloski and seconded by Mr. Simonds to adopt Ordinance 556 Open Burning on first reading.

Voice vote: motion carried 9-0.

Mayor Lovett said this would go on the October 25th agenda for second reading.

Property Tax Exemption for Commercial and Industrial Businesses Discussion

Nancy Merrill, Planning and Development Director, said this allows communities to offer tax incentives. This is not a state incentive; it is all local. It does not offer targeting. It is very broad. She does not recommend it. She would like to wait to see the values and tax rate this year. She would prefer that all increases go to the bottom line to reduce taxes for all.

Mayor Lovett said this is an introductory discussion. This has to be carefully considered.

Ms. Merrill said for Claremont this doesn't hit the mark. It is very broad and would include every project. However, RSA 79-E Community Revitalization Tax Relief Incentive allows the Council to look at every project and make a determination. She sees that incentives do not cause businesses to make decisions; they are interested in workforce. Taxes for 79-E are frozen on the preconstruction value for up to 5 years. The proposed exemption would be for up to 10 years. She feels businesses will come to Claremont without the proposed exemption.

Mr. Koloski doesn't want to get into the one-up game with surrounding communities. He likes the 79-E program; it gives the City more control. He has not heard about any businesses who are coming in for the tax incentives. Quality of life attracts businesses here. It would be a "slap in the face" for new businesses to get the incentive, but not current businesses.

Mr. Raymond said now is not the time, but maybe later. He asked if 79-E can be expanded. Ms. Merrill said it is specifically for the downtown.

Ms. Merrill said the Economic Revitalization Zone (ERZ) is a state incentive. There are a number of ERZs, in the City. Businesses can get a tax credit from the state against their state business taxes. There is no impact on the local property tax.

Mr. Temple asked if surrounding communities offer this incentive, if it would mean that our community would become a bedroom community. Ms. Merrill said no. There is a misunderstanding of Claremont being a bedroom community. As many people commute in as commute out. This is a regional economy. This year NH Industries, North Country Smokehouse, and other businesses are looking for people. Workforce housing is an issue. We need people and housing for those people. There is a real focus on that in the Master Plan. Mr. Temple said housing will help bring in workforce.

Mr. Damren said he started out being in favor of this legislation, but the more he read, the more it comes down to a lack of ability for the community to target what it wants.

Mr. Koloski would like to talk to the State Representatives about this to see if it could be targeted toward quality multifamily housing.

Mr. Temple would like to hear from DRED (Department of Resources and Economic Development) to see if they support this. Ms. Merrill said this has been signed by the Governor as enabling legislation.

Mr. McNutt said he can reach out to DRED to start the discussion.

Mayor Lovett asked Mr. McNutt to ask Ms. Merrill to send bullet points to the Council about why this is not good at this time. She would like to hear from communities who adopted this and what their experiences have been.

Mr. McNutt said he reached out to Keene and they share the same concerns as Ms. Merrill. Perhaps they haven't discussed targeting and maybe our communities could team up. Mayor Lovett said she wants to talk to the Reps first about a possible amendment.

Ms. Merrill said an option would be to table this discussion for six months. Mayor Lovett said whatever option is chosen, we have to have a clear reason and it needs to be documented.

Mr. Pope thought Ms. Merrill's idea to table for six months was a good idea.

Joe Osgood, Ward 2, said he was originally in favor of this. He suggested putting a committee together to keep this thing alive, so it can be revisited in six months when there is more information.

Mayor Lovett said this would go on the first meeting in November and between now then we will look for DRED input and see if we can get the Representatives here.

Ratification of Union Contracts

A motion was made by Mr. Damren and seconded by Ms. Kier that the Claremont City Council hereby approves a Collective Bargaining Agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Clerical Union), which calls for the following increases in salary and benefits:

<u>Year</u>	<u>Estimated Increase (Salary & Benefits)</u>
FY 2018	\$554.90

Said sum represents the additional costs attributable to the increase in salaries and benefits over those of funds appropriated at current staffing levels. The increase for FY 2018 shall be covered in the 2018 approved budget with no additional impact on the tax rate.

The City Council further authorizes the city manager, or his designees, to take such actions as may be necessary to implement this motion.

Mr. McNutt thanked the Clerical Union for a good substantive negotiation. It is a positive step forward.

Mr. Temple said this is a one-year contract, January 1, 2017, to December 31, 2017.

Voice vote: motion carried 9-0.

NEW BUSINESS

Water Sewer Capital Reserves

Mr. Damren said there was some confusion about what this might be. This will be discussed by the Finance Committee next week. He asked to put it on the November agenda.

Approval of Multi-Year Lease for the Claremont District Court

Withdrawn

Motion to Apply for NHDOT Congestion Mitigation Air Quality Program (CMAQ)

Kurt Beek, Project Manager, said NHDOT (Department of Transportation) is accepting applications for the Congestion Mitigation Air Quality Program (CMAQ). 80% of the funds are paid for through the federal government. 20% is the required City match. Eligible projects improve air quality by reducing vehicle emissions. There is \$13.5 million available. The maximum project limit is \$1.5 million. The City will submit two projects. One is Washington/Broad Street signal system optimization. Optical equipment will be installed at each of the 10 signals on Washington Street. It will reduce lag times and improve traffic flow by reducing stops and delays. The cost is approximately \$650,000 with 80% coming from the federal government. The second project is a fleet replacement. It is a capital purchase and will retire two vehicles at Public Works, 1994 vac jetter and 2005 Bombadier sidewalk machine. That project cost will be \$450,000 with 80% coming from the federal government.

Mr. McNutt asked if these items are on the Capital Improvements Plan (CIP). Mr. Beek said yes. Mr. McNutt said if this is approved, the City would get some CIP items 80% paid for by the federal government.

Ms. Walter said some traffic signaling that Fire Chief Bergeron talked about will be done at the same time. Chief Bergeron said a lot of the loop detection is cut into the pavement. This grant is electronic devices that are above ground. It will tie in with planned improvements that involve cameras instead of buried loops.

Mr. Pope asked if we have any intersections running like this. Chief Bergeron said yes, Drapers Corner, North & Elm, and Water Street.

Mr. Temple asked if this is a 360-degree camera. Mr. Beek said yes. It can pick up other data as well.

Ms. Walter said one vehicle is for water/sewer and the other is for highway. We could do a lease for the highway vehicle or the water/sewer could pay for both vehicles and the highway can pay back the water/sewer fund. Regarding communication for optimization, we have a capital reserve called Communications and Technology. The goal of that was to replace the finance software. There is \$287,000 in the fund, so there is enough money for our 20% match.

Mr. Damren said during the budget discussions, it was stated the Finance accounting system needed to be replaced. He asked if taking the money from the capital reserve will affect that. Ms. Walter said we add about \$15,000 to it each quarter. There are a lot of lease programs. She does not want to give up having to pay \$200,000 for \$1 million. She can find a way to deal with it. The company is no longer doing upgrade enhancements, but it still works.

A motion was made by Mr. Pope and seconded by Mr. Damren to approve the submission of a Congestion Mitigation Air Quality (CMAQ) Program application to the New Hampshire Department of Transportation for Washington and Broad Streets signal system optimization and for Public Works fleet replacement/capital purchase in an amount not to exceed \$1,102,600 (requiring 20% City match) and further authorizes the City Manager to execute all documents as may be required related to the CMAQ application and if received, to any related NH CMAQ contracts and any amendments thereto.

Voice vote: motion carried 9-0.

COMMITTEE REPORTS

Mr. Damren said he sent over the revised policy for fund balances to the Policy Committee and he hopes Council will be able to approve it in the month of November.

Mr. Pope said the Policy Committee will be setting up an alternate meeting date as the scheduled date is the same as the Keno public hearing in order to finish the City-owned Property Naming policy.

Mayor Lovett said when Mr. Pope has the Policy meeting, she or Mr. Damren will attend.

Ms. Towle said at this month's ZBA (Zoning Board of Adjustment) meeting that Vice Chair Abigail Kier took over and the meeting was run very well. Ms. Towle said there will be openings on the ZBA and she encouraged people to apply.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett talked about the \$500,000 Ms. Walter mentioned in the Finance Report. She would like to hear recommendations from the Administration about where they would like to see the money go. She would also like the Council to think about it. Ms. Walter said the comment in the Finance Report was a direct result of the Council asking the Administration during the budget season to come back after close out at the end of the year with a recommendation for where to get paving money. Mayor Lovett said she wants to see what the Administration and the Council recommend. Ms. Walter said her recommendation would be to build fund balance. There are big projects coming such as Charlestown Road.

Mr. Damren asked about the status of the auditors. Ms. Walter said they finished their field work last week. She expects the draft audit will be back within the next month. Mr. Damren said he would feel better knowing what fund balance is before moving on with this.

Mayor Lovett asked to tentatively place on the second meeting in November an Audit Update.

Mayor Lovett asked Mr. McNutt for things that can be done beyond leaf pick-up for fall clean-up to be included on the October 25 meeting.

Ms. Towle said she wants to make sure Council is paying attention to new businesses that are coming into Claremont. Mayor Lovett said it was the decision of the Council to have all Councilors sign the welcome letters. She said she would print them and have them at the October 25th meeting for signatures.

Mayor Lovett said there will be a Keno public hearing on October 19, 6:30 p.m., in Council Chambers. The Keno question will be on the ballot in November. Ms. Towle asked, because this hearing will be in Council Chambers, if any of the Councilors could be here early to greet the citizens.

Mr. Temple talked about the needle exchange program at the Claremont Soup Kitchen. He was concerned about allowing this to go on in school zone. It is within 300 feet of a school. He asked whether or not there should be a discussion about it. Mayor Lovett said there was a meeting about this and it was vetted with the Administration. Mr. McNutt said this is on the Police Chief's radar. Mr. McNutt said he will follow-up with the Dartmouth students, the Soup Kitchen and Mike McCrory regarding zoning.

Mr. Simonds said that state law states that a needle exchange cannot be within a school zone.

Mr. McNutt will try to get information regarding the legality for either the October 25th meeting or the first meeting in November.

Mr. McNutt said Police Chief Chase and he sent information to the Mayor about overdose deaths throughout NH. He said it had really good data. He asked Mayor Lovett if she would share that with the Council.

Ms. Towle would like to come out with a common press release by a combined agenda of people with regard to issues of a community-wide concern/impact. Mayor Lovett said she was hoping to discuss that at the first meeting in November.

Mr. Koloski asked Mr. McNutt for a follow-up to the yellow bins zoning.

Mr. Koloski said that a citizen had shared a concern that the “put & take” shack at the Transfer Station was not in service. Mr. Temple said there was no support for it; nobody wanted to manage it.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:58 p.m., a motion was made by Mr. Pope and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council